

Comment on "Copyrights and Creativity: Evidence from Italian Opera in the Napoleonic Age"

Marios Tsoukis
NYU

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Abstract

In their 2020 JPE paper, Giorcelli and Moser look at the Napoleonic invasion of Italy to find evidence of the effects of copyright laws on opera production. I show their replication package is internally inconsistent and incorrectly implements econometric tools. Further, I explain why the identification strategy the authors exploit is flawed. Finally, I use accessible and comprehensive data on opera premieres to attempt to replicate their findings, failing to match their results.

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1 Introduction

In their 2020 *Journal of Political Economy* article "Copyrights and Creativity: Evidence from Italian Opera in the Napoleonic Age" paper, Giorcelli and Moser (2020), henceforth GM2020, investigate the causal effects of copyright laws on creative output, using Italian operas production and an exogenous copyright law in parts of Italy. The paper finds that post-copyright introduction, Opera quantity and quality go up. They find no negative effect on Opera production in untreated states, and a positive effect on Italian emigré composers returning to Italy. Their results suggest that copyright protection increases innovation. The first draft of the paper was published in 2014, and the paper received support from NSF CAREER grant 1151180 and INet grant INO1500022.

GM2020 exploit the exogenous 1801 passing of the French 1793 copyright law in Italy. The law was only passed in territories Napoleon had conquered prior, Lombardy and Venetia. Moreover, the identification strategy hinges on regions conquered after the law's passing not implementing the copyrights law. Indeed, the Napoleonic Code, introduced in Italy in 1804, was indifferent to copyright protections; there was no new introduction of copyright protections and no repeal of pre-existing laws. Hence, the natural experiment is that GM2020 employ a DiD approach to evaluate the effect of the law on the number of operas produced, using a manually composed dataset derived from books. They also investigate the effects of the law on the number of composers, intensity of composers' output, and the quality of the performances.

The paper's replication package, available online, provides datasets and STATA do codes to replicate their results. Their replication package spans 22 datasets, 5 of which include the number of operas produced across different aggregations and used in the main paper. The datasets published are post-collection; they do not show the scripts needed to recreate them from the raw data, which is not included. The authors refused to share the raw opera data. Operas are not named, only tallied, and the authors assign `composer_id` to each composer without identifying them.

In this report, I look into the historical setting and assess the paper's identification strategy, examine the data it uses, replicate the paper's main results using publicly available and accessible data, and discuss the econometric implementation. Overall, I identify serious concerns with the paper, raising questions about the rigor of the paper's methodology and, consequently, the validity of its results. The comment is structured as follows: Section 2 analyses the data work and the replication package of GM2020, Section 3 shows the results of replicating parts of the paper using accessible data, Section 4 looks at the context the papers exploit, examining the validity of the identification strategy, section 5 concludes. Overall, I find that the GM2020 replication package contains internal inconsistencies, contains opera productions that cannot be found online, and the description of the historical setting contains fundamental errors.

2 GM2020 Replication Package

In this section I present and analyze the GM2020 data. I look at internal discrepancies of their replication package.

2.1 Overview of GM2020 Data

Overall, GM2020 list five books used to compile their dataset. These are: Carlo Dassori’s *Opere e Operisti*, *Dizionario Lirico* (1903), Loewenberg’s (1978) *Annals of Opera*, Corrado Ambiveri’s (1998) *Opere e Operisti Minori dell’Ottocento Italiano*, *New Grove Dictionary of Music and Musicians* (2001), *Treccani’s Enciclopedia Italiana di scienze, lettere ed arti* (2001). The authors treat operas included in Loewenberg (1978) as of higher quality; Loewenberg includes only notable opera premieres. Loewenberg is also the most restrictive source of their sample ”133 of 1,353 operas in Dassori (1903) and none of 71 operas in Ambiveri (1998) are included in Loewenberg (1978)”. The authors report 705 Italian born composers who create 2598 Operas overall. For the period 1781 to 1820, they report 677 Operas by 192 composers. For no year-state observation is the number of new operas reported 0.

GM2020 contain several dataset files in their replication packages to create tables and figures. Below I summarize the total implied Opera count in each of the datasets. In the paper, GM2020 report 677 operas- this does not appear in any datasets in the replication package.

Dataset	Variable	Total	Used in Paper
operas_1781_1820	operas	657	Tables 1,3,4
operas_copyright_total	total_operas	731.6	Fig. 2
composer_level	comp_operas	704	Table 5
city_level_operas_1781_1820	operas_city	617	Table 8

Table 1: Summary of Total Opera Production by Dataset

Further, while in the paper they report 62 historically noteworthy operas, their replication package data counts 58; the paper reports 42 operas on Amazon, their replication package counts 39.

The main dataset is *operas_1781_1820*, as this is used for the baseline calculations. For the datasets *operas_1781_1820*, *composer_level*, and *city_level_operas_1781_1820* I sum the variable operas to get the above table. For *operas_copyright_total*, which reports average operas by treatment status, I first multiply by the number of states in each treatment group.

2.2 Opening Night! Premieres Databases

Opera aficionados have curated extensive data on historical opera production- including premieres. At least two are both easily accessible online and were available before the paper’s first draft in 2014. The main dataset I use is "Opening Night! Opera & Oratorio Premieres" (henceforth ON), which is based on the 2003 book 'From Don to Giovanni: Opera and Oratorio Citation Database', created by Richard Parrillo. It is curated by Stanford University Libraries, and created in 2013. Its data can be accessed using the Julia package *ONOperas.jl*. I choose the ON database because the authors had access to it, as they cite it as a source for their data on other musical compositions, and because of the accessibility and ease of scraping. The data I compile using the ON database has 1907 Operas by 264 distinct Italian-born composers.

GM2020 use the ON database to create the variable *opening_night* in the dataset *musical_compositions_1781_1820.dta*. The variable is explained in Appendix table A18: "The dependent variables Opening Night!, symphonies, and songs per state and year measures the number of new operettas, oratorios, and serenades (excluding operas) in state *i* and year *t* between 1781 and 1820." The introduction of operettas as a genre, however, did not occur until Jacques Offenbach staged the first operettas in Paris in the 1850s in Paris (Encyclopaedia Britannica). Further, 149 of the 320 observations of the *opening_night* variable contains fractions. Overall, summing over all the state and years, we get 729.5 operettas in Italy from 1781-1820, when operettas have yet to be invented. The ON dataset does not identify any operettas in that time period. Additionally, while GM2020 identify 484 oratorios, ON only includes 164, and the source of the 2600 serenades is not clear.

I find that the difference in Operas cannot be attributed solely to differences in sources. Using OCR, I scan and show that the data in Loewenberg does not match their *operas_annals* variable, whereas it should.

2.3 Data Issues & Inconsistencies

In this subsection, I investigate the sources and implications of the inconsistencies of the data available in GM2020.

2.3.1 Composers Data

GM2020 finds that opera production increases overall, but also that production per composer goes up. They use the *composer_level_data.dta* to support their claims. The dataset in the GM2020 replication package references 192 Italian composed composers, as opposed to the 264 I find on the Opening Night! database. The composers in their replication package are not named, but rather have a unique id number. These range from 1-210, with 18 ids missing. There is a column with

individual compositions per state per year for each composer *operas_comp*, and a column with a fixed value per composer *tot_operas*. There are 11 composers which have more operas listed than reported as their overall opera compositions. They composed 47 more operas- precisely the difference between *operas_1781-1820* and *composer_level_data*.

Further, *composer_id = 13* is active in years 1781 through 1804, before abruptly producing an extra 9 Operas in 1813, all in Lombardy. In GM2020’s main Opera count however, Lombardy only produced 6 Operas that year. Similarly, composer 8 composed 8 Operas in Lombardy in 1814, composer 9 composed 9 Operas in Lombardy in 1815, while composer 3 composed 8 Operas in Lombardy in 1812. For the above years, each composer is the only active composer in Lombardy. This is not reflected in the ON! data, where multiple composers are active in the same state each year, and where the most productive composer per year (Domenico Cimarosa in each of 1781-84) composed 6 Operas in each of those years. Overall, there are 8 state-year-composer outputs that exceed the maximum I could find from any one composer in any given year in the ON! database. These are all in Lombardy, and post-treatment. Further, the data for Venetia also exhibit inconsistencies. Venetia in 1803 has composers creating 11 Operas, while their main dataset, *operas_1781-1820.dta* reports 8. Below I show how the composer dataset departs from their main dataset.

Table 2: Differences across composer and main dataset

State	1781-1800	1801-1820
Lombardy and Venetia	-1	28
Other States	10	10

2.3.2 Repeat Performances

Their dataset on repeated shows of new operas, *operas_1781-1820-repeat_premiere.dta*, serves to provide empirical evidence that copyrights lead to performances that have more success, as measured by how many times they are repeated, in Table A10 of their paper. The variable *season_count* measures how many times the average new opera produced within the state is repeated during its inaugural season. It is not clear from the text what the source for this dataset is, and I could not find any dataset which reports something similar. Nonetheless, the numbers reported are not consistent with their main dataset. Between 1781-1799, the average new operas produced by Modena and Parma was repeated 4.444445 times within each year. These states, however, produced 1 new opera in each of those year, implying that these operas were all performed 4.444445 each season. The table below shows the correlation between *season_count* and the *operas* variable is perfect ($R^2 = 1$); one is a linear transformation of the other, the intercept is 0, the gradient is 0.225. The number of observations is 320, and there are 9 distinct season counts.

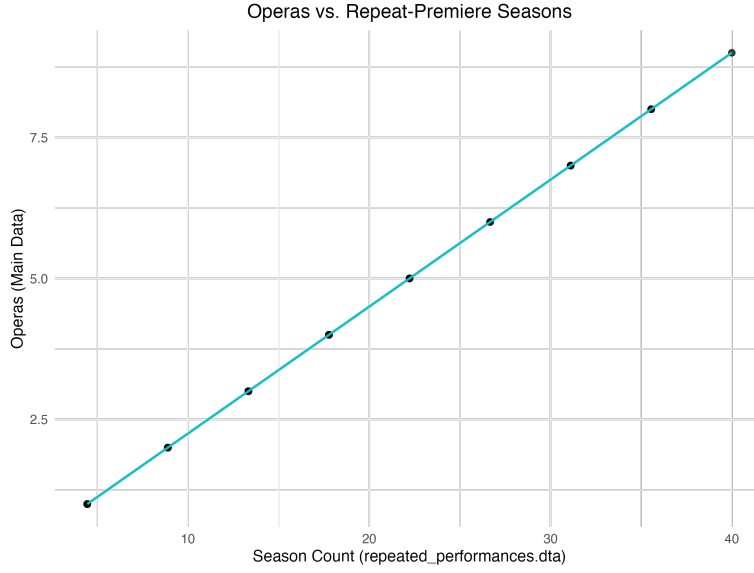
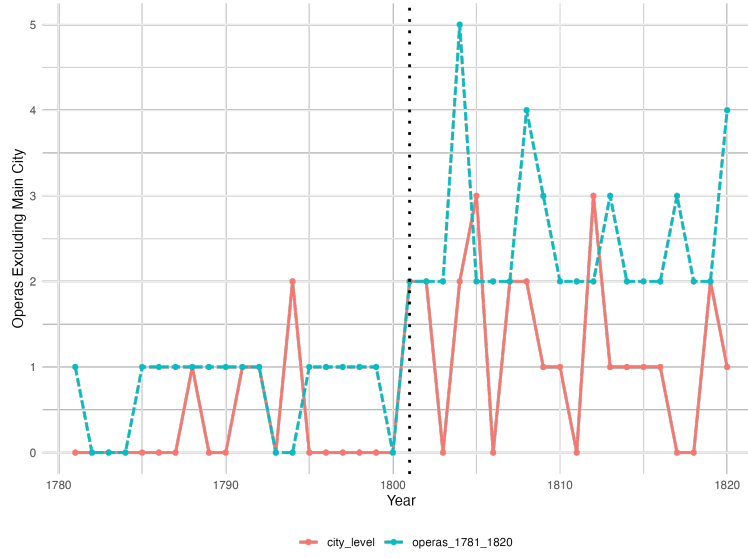


Figure 1: Scatter Plot of Number of New Operas vs. how many times each Opera is performed in GM2020

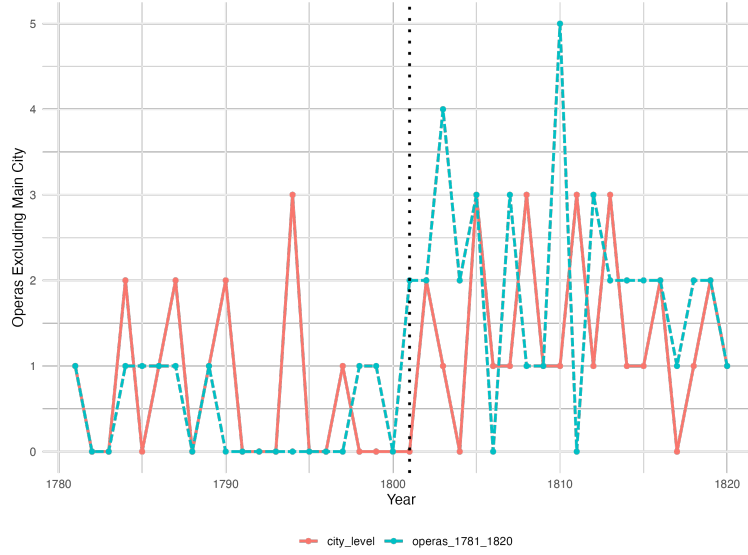
As such, Table A10 and Table 3 of GM2020 report the same regressions, where the former's coefficients have been scaled by 0.225. Consequently, they have the exact same t-stat.

2.3.3 Treated States without their Capitals

Here, I highlight the discrepancies between the data the authors use and the ON data when it comes to the proportion of Operas produced across time within Lombardy and Venetia, with and without including Milan's and Venice's production. The authors exclude Milan and Venice to alleviate concerns that these two major cities are driving the results in their regressions in their main dataset, and rely on them to look at the interaction with pre-existing theater infrastructure. Below I show their respective states' new Opera production across their two datasets. In the *city_level* dataset, I aggregate all the operas composed in each state excluding Milan and Venice. The *operas_1781_1820* dataset contains the variables *operas_no_milan* and *operas_novenice*.



(a) Lombardy: Operas Excluding Milan



(b) Venetia: Operas Excluding Venice

Figure 2: Opera Production Excluding Main Cities, by State and Dataset- GM2020

Overall, we notice that the main dataset attributes more operas post-treatment to the main city in each treated state, compared to the city-level dataset. The direction of the difference between Opera production being relatively more concentrated or more dispersed in each dataset is in the direction that increases the treatment effect in the do-files they are used.

I recreate Table A6 using the number of operas excluding Milan and Venice as used in the

city_level_data. The results show that excluding Milan (columns 3,4) kills the significance of their results.

Table 3: GM2020 Table A6. Dependent Variable is New Operas per State and Year, 1781-1820

	(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)
	OLS	Poisson	OLS	Poisson	OLS	Poisson	OLS	Poisson
Lombardy & Venetia * post	1.654*** (0.340)	0.915*** (0.156)	0.652 (0.357)	0.360 (0.193)	0.106 (0.234)	0.646* (0.276)	3.336*** (0.373)	1.156*** (0.103)
State FE	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Year FE	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Excluding Venice	Yes	Yes	No	No	No	No	No	No
Excluding Milan	No	No	Yes	Yes	No	No	No	No
Excluding Venice and Milan	No	No	No	No	Yes	Yes	No	No
Excluding Venetia	No	No	No	No	No	No	Yes	Yes

Standard errors in parentheses

* p<0.05, ** p<0.01, *** p<0.001

2.3.4 Synthetic Controls

The authors have a self-standing dataset, *synthetic_control.dta*. It has 5 columns, year, synthetic Lombardy, synthetic Venetia, true Lombardy, true Venetia. For 7 years, the true Lombardy variable is not in accordance with the number of operas listed under Lombardy in their main dataset.

Further, the values for synthetic Lombardy and synthetic Venetia are not consistent with a weighed average of donor states' opera productions. For example, synthetic Lombardy's value for 1805 is 0.8. However, using the main dataset, all states in that year produced between 1 to 7 operas. For the years 1786 and 1788, each of donor states report identical operas, yet synthetic Venetia has different values. To deconstruct the relationship, I regress synthetic Venetia and synthetic Lombardy on the donor states. Running the regressions, we see that the R^2 for synthetic Lombardy is 0.92 and for synthetic Venetia 0.96; it should be 1.

2.3.5 Other Musical Compositions

In section 8.B of GM2020, the authors test whether the introduction of copyrights impacted the production of other musical compositions. Specifically, they claim to use "Opening Night! Opera & Oratorio Premieres" as a source for operettas, serenades and oratorio premieres. The results are shown in table A17 of GM2020, the dataset used is *musical_compositions_1781-1820*, the variable of interest is *ope_new_lib* and *opening_night*, and the time span is from 1781 to 1820. There are four

main issues. Firstly, ON! does not have data on serenades. Indeed, the "Opening Night! Opera & Oratorio Premieres" dataset has data on Opera and Oratorio Premieres only. Secondly, Operettas as a genre does not exist until the 1850s, 30 years after the last unit of observation. Thirdly, the sum of the variable across the 40 years is 729.5, and 149 of the 320 observations are not integers. Fourthly, for 84 observations, the number of operas using a new libretto is greater than the total number of operas they report.

2.4 Econometric Issues

In this subsection, I look at the econometric implementation used in GM2020. Overall, I find issues and misrepresentations that I describe below.

2.4.1 Standard Errors

The main specification of the paper runs pooled OLS with dummies for state and year; their smallest unit of observation is the state-year, and they do not cluster errors at a coarser level. For robustness, the authors claim their results remain significant when employing two alternate specifications; I show this is not the case.

The authors claim to implement the procedure specified in Bertrand et al. (2004), who show that not using clustered standard errors is problematic, even if accounting for state fixed and year effects; when not adjusting for serial correlation between errors the null is rejected too often even for placebo policy treatments, with significant results reported as high as 45% of the times Bertrand et al. (2004).

Firstly, they claim their results are robust to clustering at the state-level. Footnote 24 states:

"Even though our results are robust to clustering at both the state and state-year levels, our preferred specification includes fixed effects for states and for years, with clustering at the level of states and years."

The table below shows the results of the specifications of GM2020 Table 3 clustering is at the state level. The results fail to be significant for 3 of the 5 specifications, including their preferred one- the DiD specification (Column 1)¹. The two significant results, the regressions including pre-trends, are only significant because of an erroneous implementation of pre-trends, which I discuss in Appendix A1.

¹With 8 clusters, and hence 7 degrees of freedom, significance at 5% is achieved at $t = 2.365$

Table 4: Table 3 with Errors Clustered at State Level

	(1)	(2)	(3)	(4)	(5)
	OLS	OLS	OLS	OLS	Poisson
L & V $\times$ Post	2.201 (0.991)	2.147 (0.989)	2.263* (0.780)	2.430* (0.785)	1.287 (0.783)
State FE	Yes	No	Yes	Yes	Yes
Year FE	Yes	Yes	Yes	Yes	Yes
Linear pretrend for L&V	No	No	Yes	No	No
State-specific linear pretrend	No	No	No	Yes	No

Standard errors in parentheses

* $p < 0.05$, ** $p < 0.01$, *** $p < 0.001$

Secondly, the authors do not run the extra robustness check they claim they do, as proposed in Bertrand et al. (2004). The authors acknowledge the criticism regarding their use of non-clustered errors, and state they implement the proposal in Appendix A3. Indeed, page 19 reads:

"Robustness checks estimate standard errors, collapsing years for the pre- and post copyright periods (table A3, implementing Bertrand et al. 2004, 14)."

The proposal for adjusting standard errors when N is small is to collapse the data, aggregating to 2 time periods (pre- and post- treatment). The authors present the results in Table A3, and confirm they collapsed the data. In fact, they do not do this; the replication package shows they implement clustering errors by $state \times treatment_{period}$. Below Table A3 the authors claim to cluster by state *"Standard errors are clustered at the level of eight states, implementing Bertrand et al. (2004)"*, which they do not do. In order to cluster the errors as such *without* collapsing the data, the authors create a variable which takes values between 1 and $N \times 2$, and manually allocate them to each state by period. This variable is only used here in the replication package. In Table 5, I present a correct version of table A3, consistent with the proposal of Bertrand et al. (2004). Since there are only 2 time periods, I only replicate columns 1 and 2; I cannot include linear pre-trends.

Table 5: Correct Version of Table A3

	(1)	(2)
	OLS	OLS
Lombardy & Venetia $\times$ post	2.061 (1.305)	0.892 (1.062)
Lombardy & Venetia		1.575** (0.426)
State FE	Yes	No
Year FE	Yes	Yes

Standard errors in parentheses

* $p < 0.05$, ** $p < 0.01$, *** $p < 0.001$

Overall, I observe that the robustness checks relating to Table 3's econometric specification are not correctly implemented. Adjusting for the errors results in non-significant results.

2.4.2 Composer Level Regressions

Table 5 in GM2020 reports the coefficients of composer-level regressions- the effect of copyright introduction on individual composers' opera output. Panels B & C, respectively, report the regressions excluding the top 10% and 20% of composers. The replication package shows that to do this, the authors exclude all composers who have composed more than 30 and 20 operas, respectively. However, the threshold for the most productive 10% and 20% of composers is 7 and 3 operas, respectively. Indeed, just three composers wrote more than 30 operas, and just eight more than 20. The overwhelming majority- 141/192- composed just a single opera. Adjusting for the correct opera count, all the coefficients of Table 5 Panel B fail to be significant at the 10% level. Due to a lack of power, none of the regressions of Panel C return results.

Table 6: Corrected Panels B & C of GM2020 Table 5

	(1)	(2)	(3)	(4)	(5)	(6)	(7)
	All operas Count	Historically popular operas in Loewenberg (1978, 2-3) Count	Operas performed at the Metropolitan 1900–2014 (4-5) Share	Operas performed at the Metropolitan 1900–2014 (4-5) Count	Operas performed at the Metropolitan 1900–2014 (4-5) Share	Durable operas on Amazon today (6-7) Count	Durable operas on Amazon today (6-7) Share
<i>Panel B. Excluding Top 10%</i>							
L&V* post	0.150 (2.313)	0.037 (0.263)	0.201 (0.065)	0.350 (0.370)	0.238 (0.213)	-0.119 (0.264)	-0.119 (0.264)
<i>Panel C. Excluding Top 20%</i>							
L&V* post	0.0 (.)	0.0 (.)	0.0 (.)	0.0 (.)	0.0 (.)	0.0 (.)	0.0 (.)
Composer FE	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Year FE	Yes	Yes	Yes	Yes	Yes	Yes	Yes
State FE	Yes	Yes	Yes	Yes	Yes	Yes	Yes
Pre-1801 mean	1.194	0.056	0.048	0.046	0.037	0.048	0.031

3 Replication

I attempt to replicate the paper’s main results and figures using the Opening Night! Premieres data; I fail to get similar conclusions.

3.1 Main Specification

Below I replicate Figure 2 from GM2020. I observe that the parallel trend does not seem to hold. I document that Opera production starts rapidly increasing across the treated group at 1797, coinciding with the year Napoleon signed peace with Austria in Campo Formio.

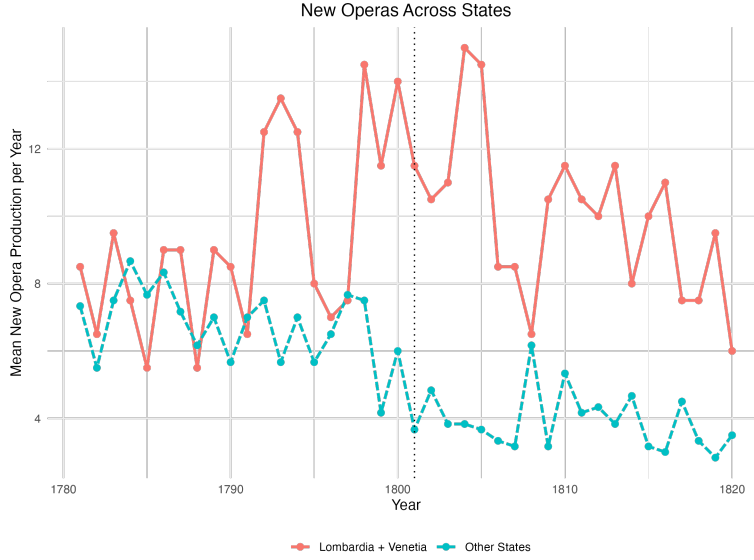


Figure 3: New Operas per State and Year in Italy, 1781-1820 (Source: ON Database)

Moreover, the claim in GM2020 that Opera output does not fall in the untreated states is not supported by the ON data. The table below confirms that the decrease in the non-treated group's Opera production is greater than the increase in the treated group's opera production.

Table 7: Summary Statistics for Opera Production

State	Pre-1801	Post-1801	$\Delta\%$	t-value	p-value
Lombardia + Venetia	8.32	8.68	4.20	0.33	0.74
Other States	6.58	3.64	-44.68	-4.54	0.00

Indeed, running a t-test on group differences fails to reject the equality of means for the treated group, while it rejects equality of means for the untreated group. Below, I show the replication of GM2020 main specification results, table 3.

Table 8: Replication of Main Specification with ON Data

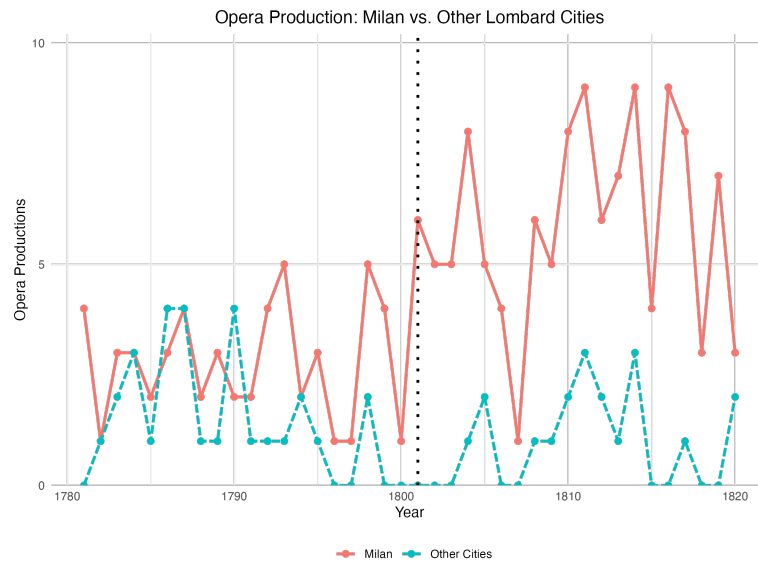
	OLS (1–4)				Poisson (5)
	(1)	(2)	(3)	(4)	(5)
Lombardy & Venetia $\times$ post	3.162*** (0.926)	2.828* (1.309)	2.023 (1.616)	1.774 (1.661)	3.774*** (0.689)
Lombardy & Venetia		2.205 (1.065)			
State FE	Yes	No	Yes	Yes	Yes
Year FE	Yes	Yes	Yes	Yes	Yes
Linear pre-trend for L&V	No	No	Yes	No	No
State-specific linear pre-trend	No	No	No	Yes	No

*Robust S.E in parentheses. *** $p < 0.001$, ** $p < 0.01$, * $p < 0.05$*

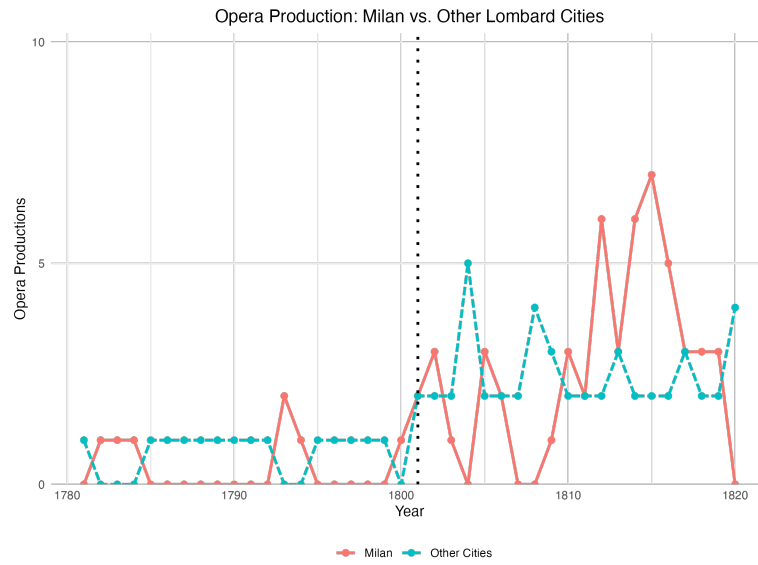
Once I account for pre-trends, shown in columns 3 & 4, the results cease being significant.

3.2 Comparison of Lombardy and Venetia without their Main Cities

Compared to the GM2020 data, looking at the treated states without their main cities, I find that production is more skewed towards the major cities. While I find 1876 overall operas compared to their reported 577, I only find 52 Operas in Lombardy but not Milan, whereas their data shows 64.

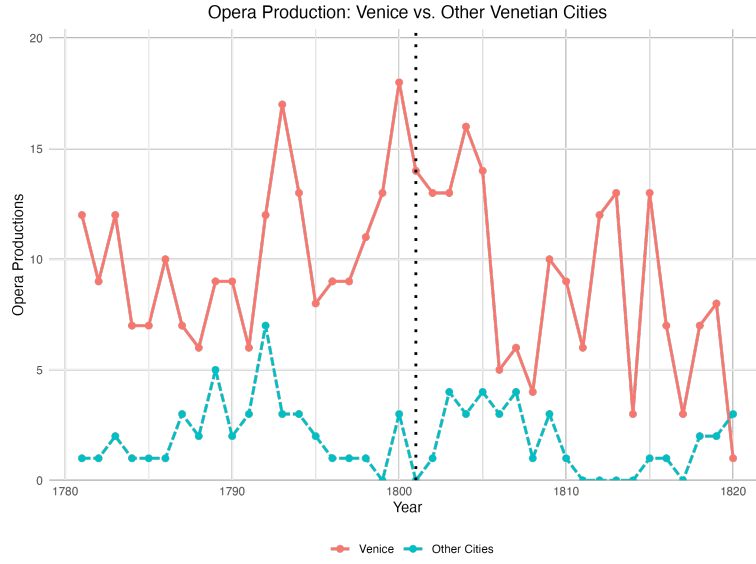


(a) ON Dataset

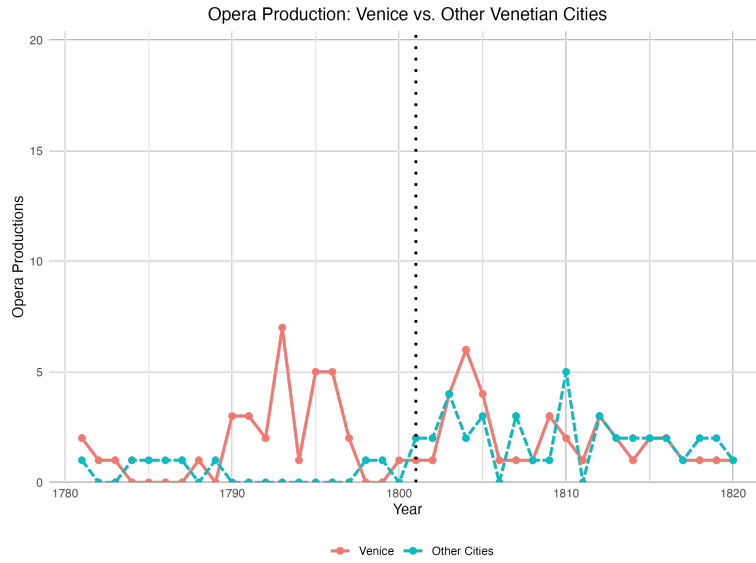


(b) GM2020

Figure 4: Opera Production Excluding Milan- ON Dataset and GM2020



(a) ON Dataset



(b) GM2020

Figure 5: Opera Production Excluding Venice- ON Dataset and GM2020

For example, in 1804 in Lombardy, only 'Nino' by Orlandi was premiered outside of Milan (Brescia), while GM2020 list 5 new operas in Lombardy. In 1811-1814, there are no new operas written by Italian-born composers in Venetia excluding Venice (only 'Adriano in Siria' by Portugal-born Marcos Portugal was premiered in Venetia but outside of Venice (Padua, 1813) in this period), yet GM2020 report 7 new operas.

To illustrate the discrepancy further, I collapse the years into pre and post treatment, and show the Opera count below. Both the levels and the direction are different. The ON dataset shows a centralization of opera production around Milan and Venice post 1801, whereas GM2020 imply a dispersion of Opera production.

Table 9: Lombardy and Venetia without their main cities

Group	Lombardy		Venetia	
	Pre-1801	Post-1801	Pre-1801	Post-1801
MG2020	14	50	8	40
ON	29	19	43	33

3.3 Loewenberg and Noteworthy Operas

I investigate one of their data sources, and find the data is not accurately portrayed in GM2020. Specifically, I use Loewenberg (1978), as this is the most easily accessible and is the sole source of their variable *operas_annals* in the dataset *operas_1781_1820*. This is used in the specifications of Table 4 of GM2020 to support the claim that copyrights introduction improved not only quantity, but also quality. In their data, for the first 8 years, from 1781 until 1788, they report no noteworthy operas. However, Loewenberg 36 notable premieres by Italian born composers in Italy during this time period. Additionally, the authors report Lombardy having 2 noteworthy premieres in 1814; Loewenberg only lists one- *Il Turco in Italia* by Rossini. Venice in 1783 has 0 operas in the GM2020 Annals variable, and 1 opera overall, yet Loewenberg lists 2 operas in Venice that year. To replicate this data, I OCR 147 pages and filter for cities in Italy and by Italian-Born Composers. While GM2020 report 58 operas in the annals, I find 130 operas. For the years where GM2020 report more operas than the book shows, it's for the states of Venetia and Lombardy and I manually check that that the discrepancy is not due to OCR mistakes. I show below the two datasets across time.

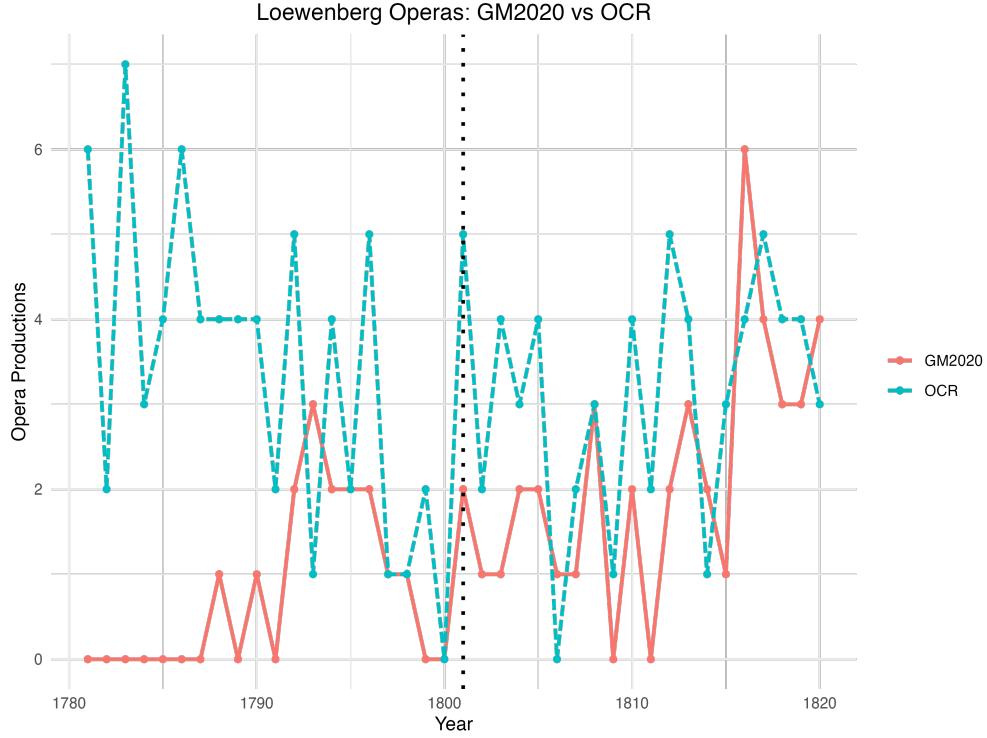


Figure 6: Noteworthy Opera Production, as measured by Loewenberg (1978)

The inconsistency between the book and what GM2020 report is not random. In GM2020, the proportion of notable operas that are premiered post-treatment in Lombardy and Venetia is 42% (24/58), while in Loewenberg the corresponding proportion is 30% (39/130).

Moreover, given Loewenberg (1978) only contains noteworthy operas, it is problematic that the book contains more operas than the authors report generally. Noteworthy performances as reported by Loewenberg are a subset of the overall opera premieres, so GM2020 should report weakly more operas in their data than in Loewenberg (1978); this is not the case.

Below I show how the different datasets compute the main specification relating to opera quality; column 1 from Table 4.

Table 10: Table 4; GM2020 Data and Loewenberg (1978) Dataset

	GM2020	Loewenberg
LV Post	0.407**	0.378
	(0.152)	(0.222)

Adjusting for the correct Loewenberg count revises downwards the point estimate, and upwards

the standard error. Significance drops from the 1% to the 10% level.

4 Identification Strategy & Setting

The paper exploits policy variation in the Napoleonic Wars in Italy to find variation in copyrights protection. The paper’s identification strategy rests on two points. Firstly, that only Lombardy and Venetia got treated in 1801 with the copyrights law. Secondly, that they were the only states to have copyrights laws until at least 1820. I investigate the setting, and show neither to be the case.

The authors divide Italy in eight states following the 1815 borders drawn in congress of Vienna. These are: the Kingdom of Lombardy (Lombardy), Venetia, the Kingdom of Sardinia (Sardinia), the Duchy of Parma and Piacenza (Parma), the Duchy of Modena and Reggio (Modena), the Grand Duchy of Tuscany (Tuscany), the Papal State, and the Kingdom of the Two Sicilies (Two Sicilies). The authors classify each of the eight as being treated or not being treated with copyrights. Venetia and Lombardy receive copyrights in 1801, all other states do not receive them in the examined time period. I show however, that by 1811 the entirety of the Italian peninsula had copyright laws. This is largely because several states were annexed directly by France, becoming departments of the French Empire like any other, and as such enforce the 1793 French copyright law. Further, I show that Venice did not have copyrights in 1801, but in 1806. Overall, the treatment status is wrong for seven of the eight states in their sample.

Lombardy

GM2020 correctly classify Lombardy as part of the Cisalpine Republic, and from 1801 onwards it had copyright protections.

Venetia

GM2020 classify the entirety of Venetia as being under Napoleonic rule in 1801, and hence having copyrights. The authors concede that officially the city was under Austrian sovereignty until 1805, but claim Venice applied Napoleonic laws. Primary and secondary historical sources confirm Venice did not have French rules and copyright laws of the type GM2020 investigate. The "Raccolta delle leggi, proclami, ordini ed avvisi pubblicati in Milano dal giorno 12 Pratile anno IX, Milano, 1801"- a published version of all laws in the Cisalpine Republic- does not list Venice as one of its territories. Indeed, Venice would only come under Napoleonic control in December 1805.

Further, we know of a case in early 1806 where copyrights were not enforced. Graziosi, in Venice, was republishing works by Sonzogno, from Milan. Sonzogno sent a letter to the Italian government complaining about the unfair advantage Venetian publishers had and lobbied for IP protection. The authorities replied that they were unable to prevent Graziosi as there was no effect of the copyright

law there, and that they would swiftly rectify this. On the 27th of June 1806, Decree 112 of the Kingdom of Italy would explicitly expand copyright protections to Venice and all the other recently obtained territories.

Kingdom of Sardinia

The Kingdom of Sardinia in GM2020 is marked as not having copyright protections. The mainland of the Kingdom of Sardinia, however, was conquered in 1796 and ceased to exist as a state in 1802; it was annexed directly by France. The island of Sardinia would remain under Sardinian control- it would not receive the Napoleonic code. Consequently, the Sardinian mainland was subject to French laws, had a French prefect, and enforced the 1793 copyright law that inspired the Cisalpine version. Indeed, we can see an 1813 reference to these laws in the 1813 Raccolta, published in Turin in 1813, where the prefect Lameth reminds authorities that the 1806 law on authors' unions as well the 1793 copyright law are enforced.

Following the Treaty of Paris in 1814, the Kingdom of Sardinia would be restored.

Duchy of Parma and Piacenza

Napoleon conquered the Duchy of Parma in 1796. It was annexed in 1802, and it too would be subject to direct French laws until 1814.

Duchy of Modena and Reggio

The Duchy of Modena and Reggio was a founding member of the Cisalpine Republic. It was conquered in 1796, and would be restored in 1814.

Grand Duchy of Tuscany

The Grand Duchy would become a puppet-state in 1801, and in 1807 would be under French military occupation and in 1808 directly annexed by France. As such, it would be subject directly to French laws.

Papal State

Part of the papal states, like Bologna and Ferrara were part of the Cisalpine Republic, having been conquered by Napoleon in 1796. The remainder of the papal states, including Rome, was annexed by Napoleon in 1809. Consequently, French laws applied directly there.

Kingdom of the Two Sicilies

In 1806, Napoleon invades the The Kingdom of Two Siciles, and conquers the land in the Italian Mainland. The island of Sicily itself remains under Bourbon control; it would not receive the Napoleonic code. The mainland would be organized under Napoleon into the Kingdom of Naples, which from 1808 to 1814 would be headed by Napoleon's brother-in-law Murat. On the 7th of

November 1811, Murat would issue Decree: N. 1134 — “Decreto contenente un sistema pe’ teatri e spettacoli.” It can be found in the “Buletino delle leggi del Regno di Napoli, 1811”. This decree grants intellectual property rights to composers, and article 19 in particular specifies that repeat performances staged by impresarios are only permitted if the composer grants consent and subject to the contract that they sign with the composers.

Analysis of Primary Sources of GM2020 Evidence

GM2020 present two pieces of primary evidence to support their claims that copyright protection existed in the Venetia and Lombardy. The first is a transcription of a page from “*Raccolta delle leggi, proclami, ordini ed avvisi pubblicati in Milano dal giorno 13 Pratile anno VIII, n.144, Milano, 1801*” showing Venice to be subject to the laws of the Cispedine Republic, and the second is a transcription of an 1803 letter from the composer Stefano Pavesi to the impresario Giacomo Pregliasco. In this letter, Pavesi rejects the offer of Giacomo Pregliasco to compose an opera for the Teatro Regio of Turin, as he receives a better offer from Venice; specifically he is paid an additional sum for each repeat performance. None of the two pieces of evidence could be identified.

Firstly, the image claimed to belong to document *Raccolta delle leggi, proclami, ordini ed avvisi pubblicati in Milano dal giorno 13 Pratile anno VIII, n.144, Milano, 1801* does not appear in the cited document. Using the revolutionary calendar, *anno VIII* spans September 23, 1799 – September 22, 1800. Conversely, both the 1800 and 1801 *Raccoltas* make explicit that Venice is neither de jure nor de facto subject to Napoleonic laws. For example, it lists the exchange rate between the Lira Cisalpina and the Venetian Ducat. In none of *Raccoltas* before 1805 does Venice get counted in any way as part of the Cisalpine Republic or any Napoleonic continuation thereof.

Secondly, the transcription of an 1803 letter from the composer Pavesi to the impresario Giacomo Pregliasco is cited as being found at the “Carte Sciolte N. 6253” of the Archivio dello Stato Centrale, in Rome. I could not find this collection in the archive catalog. I communicated with the archives, who confirm that this collection does not exist in the Archivio dello Stato Centrale. Further, the Archivio dello Stato Centrale, since its inception, only contains documents post-unification (1861)- so a letter from 1803 existing in the archive would be unusual. Nonetheless, supported by the information earlier in this section, the letter would be unusual because in 1803 Turin had already been annexed into the French empire, and hence would have copyright laws, while Venice was yet to be under Napoleonic control, and thus did not have copyright laws. To the extent this letter exists, it serves to prove that copyrights were not a major factor in remuneration for composers, and that incentives for repeat performances existed prior to the formal introduction of copyrights. This would support the analysis made in Scherer (2004), who claims that copyright only started playing a significant role in music composition in the 1830s.

Overall

I observe that GM2020 did not consider the laws after the Napoleonic code was introduced in 1804, and they incorrectly classify that Venice was under Napoleonic control before 1805. Additionally, GM2020 overlook the states directly annexed which became French departments, and consequently had French law applying. It would not be suitable to employ a Callaway and Sant’Anna (2021) or Sun and Abraham (2021) style estimators, because there is no control group- all states are eventually treated. Moreover, the Italian re-organization of the theater extends beyond the introduction of copyrights. Censorship laws were changed, the arts were used to foster a common revolutionary identity (Poggi (2021), Poggi (2024), and gambling was legalized in certain theaters Bettin (2010), leading to an influx of revenues.

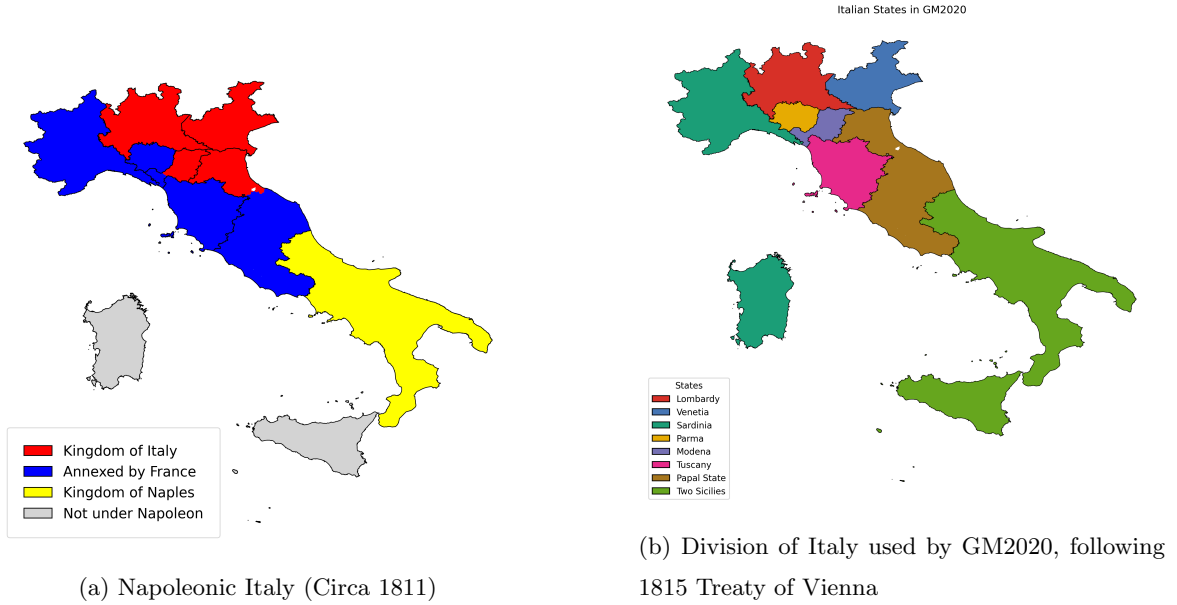


Figure 7: Evaluation of Validity of Identification Strategy of GM2020

5 Conclusion

In conclusion, I raise issues which question the credibility of the results of GM2020. This is because of four reasons. Firstly, data inconsistencies across the replication package datasets undermine the credibility of results. Secondly, the STATA code does not implement what the paper claims. Thirdly, their results cannot be replicated by external data sources. Fourthly, the historical setting is not accurately portrayed, and it is not appropriate for establishing causal relationships of copyright on opera production. This report highlights the value of publicly available replication packages and points to the value of increased transparency towards data processing and data collection.

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